

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JERRY JOHNSON,

Plaintiffs,

-against-

CITY OF NEW YORK, AKASH SHARMA and JOHN
OR JANE DOE 1-10,

Defendants.
-----X

SUMMONS

Index No.
Purchased:

Plaintiff Designates New York
County as the Proper Venue for Trial

Venue is Based on Where the Causes
of Action Arose.

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
August 16, 2024

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400



Junya Zeng, Esq.

TO: **CITY OF NEW YORK**

Via Corporation Counsel of the City of New York

100 Church Street

New York, New York 10007

AKASH SHARMA (Shield #21279, Tax #968127)

via 25th Precinct

120 E 119th St,

New York, NY 10035

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JERRY JOHNSON,

Index No.

Plaintiffs,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, AKASH SHARMA and JOHN
OR JANE DOE 1-10,

Defendants.

-----X

Plaintiff, **JERRY JOHNSON**, by and through the undersigned attorneys, **SIM & DEPAOLA, LLP**, as and for his complaint against the Defendants, **CITY OF NEW YORK, AKASH SHARMA and JOHN or JANE DOE 1 - 10**, hereby alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief *vis-à-vis* 42 U.S.C. §§ 1981, 1983, 1985, 1986 and 1988, the laws of the City and State of New York, including but not limited to New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, in addition to the self-executing clauses or implied private causes of action within the constitution of State of New York, for the violations of his civil rights, as enumerated by the First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the Constitution of the United States, the New York State Constitution, in addition to the Laws of the City and State of New York.

2. The following claims arose on or about July 2, 2023, when defendants, acting under color of state law, caused Plaintiff to be unlawfully stopped, questioned, searched, battered and assaulted, arrested and detained in the vicinity of the intersection of Lexington Ave and 116 Street, in the City and State of New York. As a result, Plaintiff was deprived of his liberty and suffered various physical, emotional and psychological injuries. Plaintiff was wrongfully detained over the course of six(6) hours. Plaintiff was maliciously prosecuted and denied Due Process and Equal

Protection of the law, until all criminal charges were unconditionally dismissed and sealed, pursuant to §§ 160.50 and 160.60 of the Criminal Procedure Law until on or about October 25, 2023 when all charges were dismissed against the Plaintiff, which constituted a termination of the criminal proceedings in Plaintiff's favor.

3. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

4. Under New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, the Plaintiff is not required to file his Notice of Claim or submit to an oral examination pursuant to section 50-H of the New York General Municipal Law.

5. Plaintiff has timely served the City of New York, Office of the Comptroller, with notice of his claims within 90 days of the date(s) from which they arose.

6. Over 30 days have elapsed since the filing of the Notice of Claim and this matter has not been adjusted or settled.

7. Plaintiff has complied with the municipal defendant's request for an oral examination, pursuant to section 50-H of the New York General Municipal Law even though under New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806, the Plaintiff is not required to file his Notice of Claim or submit to an oral examination pursuant to section 50-H of the New York General Municipal Law.

8. This action and associated claims have been filed within the applicable statute of limitations, which is three years for state and federal claims.

9. Plaintiff seeks monetary damages (compensatory and punitive) against defendants, an award of costs and reasonable attorney's fees, with all interest then accrued, together with such other or further relief, as This Honorable Court may deem just and proper.

PARTIES

10. At all relevant times herein, Plaintiff, JERRY JOHNSON, is an adult Black Hispanic or Latino male, who resides in the City of New York, State of New York.

11. Defendant CITY OR NEW YORK ("City") is a municipal corporation duly organized and existing, under the laws of the State of New York.

12. At all relevant times herein, the New York City Police Department ("NYPD") was a wholly owned subsidiary which was further wholly operated, managed, maintained and controlled by Defendant City.

13. At all relevant times herein, Defendant City, acting through its NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, screening, hiring, training, supervision, discipline, retention and conduct of all NYPD personnel, including police officers, detectives, investigators, sergeants, lieutenants, captains, correctional officers, and other supervisory officers or officials, as well as the individually named NYPD Defendants herein.

14. At all relevant times herein, Defendant City was responsible for enforcing the rules and regulations of the NYPD and for ensuring that the NYPD personnel obey the laws and constitutions and laws of the United States, State of New York and City of New York.

15. At all relevant times herein, Defendant AKASH SHARMA ("SHARMA"), Shield #21279, Tax #968127, was a police officer, supervisor, policy maker, or official employed by the NYPD or City of New York

16. Plaintiff does not know the true names or tax registry numbers of Defendants, JOHN OR JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.

17. The first name “JOHN” is fictitious and meant as a placeholder for the true and proper first name of the NYPD Police Officer Defendant who falsely arrested, maliciously prosecuted, and denied Plaintiff his Due Process rights by attempting to improperly coerce a confession from Plaintiff despite having viewed immediately available exculpatory video surveillance which unequivocally demonstrated that plaintiff had not committed any crimes or illegal acts.

18. At all relevant times herein, Defendants JOHN OR JANE DOE 1-10 were police officers, detectives, sergeants, supervisors, policymakers or officials employed by the NYPD or City of New York. At this time, Plaintiff does not know the true names or tax registry numbers of Defendants, JOHN OR JANE DOE 1-10, as such knowledge is within the exclusive possession of Defendants.

19. At all relevant times herein, Defendants, including JOHN OR JANE DOE 1-10 were acting as agents, servants and employees of the City of New York, or the NYPD. Defendants John or JOHN OR JANE DOE 1-10 are being sued in their individual and official capacities.

20. At all relevant times herein, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City or State of New York.

FACTUAL CHARGES

21. On July 2, 2023, at approximately 6:00 p.m., Plaintiff was illegally targeted, because of his race, religion, national origin or other improper characteristic for adverse police action, by Defendants, including SHARMA and JOHN or JANE DOE 1-10 in the vicinity of the intersection of Lexington Ave and 116 Street, in the City and State of New York. .

22. Plaintiff was lawfully walking and talking to his girlfriend on the street, further not committing any crimes or violations of the law, and bore no indicia of such, when a stranger coming from the opposite way, encountered and stopped Plaintiff. Plaintiff told the stranger to mind his own business.

23. At all relevant times herein, the stranger suddenly struck the plaintiff's stomach, and the Plaintiff had no choice but to fight back. The plaintiff's girlfriend and friend stepped back to the corner and called the police.

24. At all relevant times herein, Plaintiff did not initiate the physical contact with the stranger and.

25. At all relevant times herein, the physical altercation last for approximately 10 minutes before the Defendants, including SHARMA and JOHN or JANE DOE 1-10, arrived.

26. Defendants, including SHARMA and JOHN or JANE DOE 1-10, without seeking any information from Plaintiff, illegally targeted, approached, assaulted, battered, arrested and handcuffed Plaintiff, who had no probable cause or reasonable suspicion to do so and Plaintiff further exhibited no indicia of criminal or illegal behavior.

27. Defendants, including SHARMA and JOHN or JANE DOE 1-10, then illegally searched Plaintiff's person without a search warrant or any legal justification.

28. Defendants, including SHARMA and JOHN or JANE DOE 1-10, illegally approached Plaintiff, grabbed him, and began searching through Plaintiff's pockets without any legal basis to do so, as Plaintiff had exhibited no indicia of criminality and had not been observed violating any laws.

29. Defendants, including SHARMA , and JOHN or JANE DOE 1 - 10, violently contorted Plaintiff's arms behind his back to which they affixed metal handcuffs in an excessively tight fashion which caused Plaintiff's hands and wrists to become swollen, and bruised.

30. Plaintiff repeatedly requested that Defendants, including SHARMA, and JOHN or JANE DOE 1 - 10, loosen the handcuffs, because they were causing him substantial pain and discomfort due to their excessive tightness.

31. Defendants, including SHARMA, and JOHN or JANE DOE 1 - 10, ignored all of Plaintiff's pleas to loosen the handcuffs and plaintiff's request for medical attention at the scene even if Defendants witnessed plaintiff's lip and hands were bleeding.

32. Defendants, including SHARMA and JOHN or JANE DOE 1-10, arrested and caused a criminal prosecution to be initiated against Plaintiff, because of their desires to use Plaintiff's arrest and criminal prosecution to incur additional overtime compensation, benefits and favor from the superior officers, to avoid adverse consequences associated with failing to meet NYPD departmental arrest quotas, and also to conceal their egregious violations of proper police procedures and gross misconduct, including their fabrications of non-existent observations, evidence and information.

33. Defendants, including SHARMA and JOHN or JANE DOE 1-10, arrested, and applied excessive force and initiated a malicious prosecution against Plaintiff in retaliation for Plaintiff's exertion of his constitutional right to freely express his opinion and inquiries, namely Plaintiff's displeasure with the manner in which Defendants approached and addressed him and his request for an explanation as to Defendants' conduct.

34. As a result, Plaintiff was deprived of his liberty and suffered various physical, emotional and psychological injuries. Plaintiff was wrongfully detained over the course of six(6) hours.

Plaintiff was maliciously prosecuted and denied Due Process and Equal Protection of the law, until all criminal charges were unconditionally dismissed and sealed, pursuant to §§ 160.50 and 160.60 of the Criminal Procedure Law until on or about October 25, 2023 when all charges were dismissed against the Plaintiff, which constituted a termination of the criminal proceedings in Plaintiff's favor.

35. Defendants, including SHARMA JOHN or JANE DOE 1-10, were reckless, careless, and or negligent in causing Plaintiff to suffer substantial physical and emotional injuries.

36. Defendants, including SHARMA JOHN or JANE DOE 1-10, intentionally, negligently, and/or recklessly caused Plaintiff to injure or reinjure himself during his arrest.

37. The actions of Defendants, including SHARMA JOHN or JANE DOE 1-10, demonstrated their deliberate indifference to the safety of Plaintiff in violation of his constitutional rights. Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights protected under the fifth, eight, and fourteenth amendments.

38. Defendants, including SHARMA and JOHN or JANE DOE 1-10, unlawfully targeted and decided to stop and effect unlawful seizures of Plaintiff due to Plaintiff's status as a Black Hispanic or Latino male.

39. Defendants, including SHARMA and JOHN or JANE DOE 1-10, engaged in a conspiracy to falsely arrest and maliciously prosecute Plaintiff by personally conferring with each other, regarding the fabrication of the aforementioned non-existent evidence and observations, as well the manner and means by which said fabrications would be forwarded to the District Attorney's Office.

40. Plaintiff asserts that the Defendants, including SHARMA and JOHN or JANE DOE 1-10, who violated Plaintiff's civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.

41. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

42. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiff's arrest without probable cause.

43. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

44. Defendants' actions, pursuant to Plaintiff's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiff's civil rights that the tacit

approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.

45. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD and City of New York.

46. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

47. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the

City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Defendants JOHN or JANE DOE 1 - 10.

48. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein, all of which have resulted no disciplinary or corrective action of any kind.

49. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named Defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct.

50. The aforementioned acts of Defendants, including SHARMA and JOHN or JANE DOE 1-10, directly or proximately resulted in the deprivation or violation of Plaintiff's civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.

51. As a direct or proximate result of said acts, Plaintiff was caused to suffer the loss of his liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.

FIRST CAUSE OF ACTION

Freedom of Speech Retaliation Claim Under
New York State Law

52. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

53. Plaintiff engaged in speech and activities that were protected by section 8, of Article I to the constitution of the State of New York.

54. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

55. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

56. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities or by chilling his desire to further participate or engage in such protected speech or activities.

57. Accordingly, Plaintiff's right to engage in protected speech and activities, guaranteed and protected by section 8, of Article I to the constitution of the State of New York was violated by Defendants and thus, Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

58. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings, under the doctrine of *respondeat superior*.

59. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

First Amendment Retaliation Claim Under
42 U.S.C. § 1983 *Against* Individual NYPD Defendants

60. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

61. Plaintiff engaged in speech and activities that were protected by the First Amendment to the United States Constitution.

62. Defendants committed impermissible or unlawful actions against Plaintiff that were motivated or substantially caused by Plaintiff's constitutionally protected speech or activities.

63. Defendants' retaliatory actions against Plaintiff resulted in the deprivation of his liberty and the initiation of criminal charges against him.

64. Defendants' retaliatory actions adversely affected Plaintiff's protected speech or activities by physically or procedurally preventing him from further pursuing said protected speech or activities, or by chilling his desire to further participate or engage in such protected speech or activities.

65. Accordingly, Plaintiff's right to engage in protected speech and activities, as guaranteed and protected by the First Amendment to the United States Constitution, was violated by Defendants.

66. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION
Unlawful Search & Seizure Under
New York State Law

67. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

68. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

69. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

70. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

71. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

72. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to section 12, of Article I to the constitution of the State of New York and section 8, Article II, of the New York Civil Rights Law. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

73. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

74. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual NYPD Defendants

75. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

76. Defendants subjected Plaintiff and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

77. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his person and property.

78. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

79. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

80. Accordingly, Defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.

81. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTIONFalse Arrest & False Imprisonment Under
New York State Law

82. The above paragraphs are hereby incorporated by reference as though fully set forth herein.
83. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.
84. Plaintiff was conscious of his confinement.
85. Plaintiff did not consent to his confinement.
86. Plaintiff's arrest and false imprisonment was not otherwise privileged.
87. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.
88. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.
89. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTIONFalse Arrest & False Imprisonment Under
42 U.S.C. § 1983 *Against* Individual Defendants

90. The above paragraphs are hereby incorporated by reference as though fully set forth herein.
91. The Defendants violated the Fourth and Fourteenth Amendments to the Constitution of the United States by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.

92. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

93. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.

94. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Assault & Battery Under New York State Law

95. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

96. At all relevant times, Defendants caused Plaintiff to fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

97. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent or justification.

98. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

99. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered damages.

100. Defendants CITY, as employer of the individual Defendants, are responsible for their wrongdoings under the doctrine of *respondeat superior*.

101. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Excessive Force Under

42 U.S.C. § 1983 *Against* Individual NYPD Defendants

102. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

103. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

104. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered him without his consent.

105. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTIONMalicious Prosecution Under
New York State Law

106. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

107. Defendants initiated the prosecution against Plaintiff.

108. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution could succeed.

109. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

110. The prosecution was terminated in favor of Plaintiff when all criminal charges were unconditionally dismissed and sealed on the merits, pursuant to sections 160.50 or 160.60 of the New York Criminal Procedure Law.

111. Due to the intentional, willful and unlawful acts of Defendants, Plaintiff suffered significant damages.

112. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

113. Defendants City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

114. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 *Against* Individual Defendants

115. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

116. Defendants initiated the prosecution against Plaintiff.

117. Defendants lacked probable cause to believe Plaintiff was guilty or that the prosecution would succeed.

118. Defendants acted with malice, which, in the absence of probable cause, may be inferred.

119. The prosecution was terminated in Plaintiff's favor when all criminal charges were unconditionally dismissed and sealed on the merits, pursuant to sections 160.50 or 160.60 of the New York Criminal Procedure Law.

120. Accordingly, Defendants violated Plaintiff's Fourth and Fourteenth Amendment rights.

121. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

122. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

123. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

124. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

125. Defendants intended to inflict substantial harm upon Plaintiff.

126. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

127. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

128. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

130. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

131. Defendants arrested, detained and caused a criminal prosecution to be initiated or maintained against Plaintiff to compel the compliance or forbearance of some act.

132. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.

133. Defendants intended to inflict substantial harm upon Plaintiff.

134. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.

135. Defendants' actions deprived Plaintiff of his constitutional rights to free from illegal searches and seizures and to not be deprived of his liberty without the due process of law in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

136. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Denial of Right to Due Process Under
New York State Law

137. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

138. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

139. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

140. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

141. Accordingly, Defendants deprived Plaintiff of his civil rights, pursuant to sections 1, 2, 6 and 9, of Article I to the constitution of the State of New York, as well sections 10 and 12, of Article II, of the New York Civil Rights Law. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

142. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

143. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTEENTH CAUSE OF ACTION

Denial of Rights to Due Process & Fair Trial Under
42 U.S.C. § 1983 *Against* Individual Defendants

144. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

145. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

146. Defendants forwarded said false information to prosecutors within the District Attorney's Office.

147. Defendants' actions resulted in post-arraignment restrictions and deprivations upon Plaintiff's liberty and freedom of movement.

148. Accordingly, Defendants violated Plaintiff's right to Fair Trial and Due Process of Law, pursuant to the Fifth, Sixth or Fourteenth Amendments to Constitution of the United States.

149. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTEENTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

150. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

151. Defendants impermissibly relied upon Plaintiff's actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation, as the determinative factor in initiating law enforcement action against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

152. Accordingly, defendants violated Plaintiff's rights, pursuant to section 14-151 of the Administrative Code of the City of New York.

153. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

154. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

155. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under New York State Law

156. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

157. Plaintiff, as a Black Hispanic or Latino male, is a member of a racial minority and protected class.

158. Defendants discriminated against Plaintiff on the basis of his race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

159. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

160. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

161. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

162. Defendants, motivated by discriminatory animus, applied facially neutral statutes with adverse effects against Plaintiff.

163. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

164. Accordingly, Defendants violated Plaintiff's rights, pursuant to section 11, Article I, of the New York Constitution, section 79-N, Article VII, of the New York Civil Rights Law and paragraph 13, section 296, of the New York Executive Law.

165. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

166. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTEENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against* Individual Defendants

167. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

168. Plaintiff, as a Black Hispanic or Latino male, is a member of a racial minority and protected class.

169. Defendants discriminated against Plaintiff on the basis of race, color or ethnicity.

170. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

171. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of his Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

172. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

173. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

174. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

175. Defendants City, as employers of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

176. Accordingly, Defendants violated Plaintiff's rights, under the Fourteenth Amendment.

177. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTEENTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 *Against* Individual Defendants

178. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

179. Defendants engaged in a conspiracy against Plaintiff to deprive Plaintiff of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, to not be deprived of his liberty or property without due process of law, or of the privileges and immunities under the laws and constitutions of the United States and of the State of New York.

180. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

181. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

182. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial, otherwise class-based, invidious or discriminatory animus.

183. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be

committed or in process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

184. Accordingly, Defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth or Fourteenth Amendments to the United States Constitution.

185. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINETEENTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

186. The above paragraphs are here incorporated by reference as though fully set forth herein.

187. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

188. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

189. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

190. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTIETH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

191. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

192. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

193. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth, Sixth or Fourteenth Amendments.

194. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FIRST CAUSE OF ACTION

Fabricated Evidence Claim Under
42 U.S.C. § 1983 *Against* Individual Defendants

195. The above paragraphs are here incorporated by reference as though fully set forth herein.

196. Defendants deliberately fabricated evidence against the Plaintiff and that as a result of this evidence being used against him, he was deprived of his rights to Due Process of Law or Fair Trial.

197. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty or was deprived of rights or privileges of citizens of the United States.

198. Defendants fabricated evidence in order to support their false arrest, detention and prosecution of the Plaintiff.

199. Defendants used this fabricated evidence and informed the prosecution that the fabricated evidence was true and accurate despite the fact that knew that the fabricated evidence was not true.

200. As a result, the Plaintiff was deprived of his rights, pursuant to the Fifth, Sixth or Fourteenth Amendments to the Constitution of the United States.

201. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-SECOND CAUSE OF ACTION

Negligent Hiring, Training, Retention or Supervision Under

New York State Law

202. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

203. Defendants CITY owed duties of care to Plaintiff to adequately hire, train, retain or supervise their employees, including the individually named defendants herein.

204. Defendants CITY breached those duties of care.

205. Defendants CITY placed the individually named defendants in positions where they could inflict foreseeable harm.

206. Defendants CITY knew or should have known of that their employees, including the individually named defendants herein, exhibited substantial propensities for committing civil rights violations against members of the public, such as Plaintiff.

207. Defendants CITY failed to take reasonable measures in hiring, training, retaining or supervising their employees, including the individually named defendants herein, that would have prevented the aforesaid injuries to Plaintiff.

208. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-THIRD CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

209. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

210. Defendants' acts or series of acts constituted a misdemeanor or felony against Plaintiff, as defined in state or federal law which presented a serious risk of physical injury to Plaintiff, whether or not such acts have actually resulted in criminal charges, prosecution or conviction.

211. Accordingly, Defendants committed a crime of violence against Plaintiff and violated Plaintiff's rights, pursuant to the section 10-403 of the Administrative Code of the City of New York.

212. Defendants are subject to liability for violations of the constitution of the State of New York and violations New York City Human Rights Law under NYC Admin Code §§ 8-801 – 8-806.

213. Defendants CITY, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

214. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWENTY-FOURTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 *Against* Defendant City

215. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

216. Defendant CITY maintained a policy or custom that caused Plaintiff to be deprived of his civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiff, to such violative behavior.

217. Defendant CITY’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

218. Defendant CITY, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with Defendant City’s employees.

219. Defendant CITY’s employees engaged in such egregious and flagrant violations of Plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and

equates to a display of deliberate indifference by Defendant CITY and its policymakers toward the rights of individuals, who may come into contact with Defendant CITY's employees.

220. Defendant CITY's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

221. Defendant CITY's conduct caused Plaintiff to be deprived of his civil rights, as guaranteed by the Constitution of the United States *vis-à-vis* the First, Fourth, Fifth, Sixth, Eighth or Fourteenth Amendments thereto.

222. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged

WHEREFORE, Plaintiff respectfully requests judgment against defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) On the Fourteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) On the Sixteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- q) On the Seventeenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- r) On the Eighteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- s) On the Nineteenth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- t) On the Twentieth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- u) On the Twenty-First Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- v) On the Twenty-Second Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- w) On the Twenty-Third Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- x) On the Twenty-Third Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- y) On the Twenty-Fourth Cause of Action, in a sum of money exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- z) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- aa) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, in addition to the Administrative Code of the City of New York; together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
August 16, 2024

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400



Junya Zeng, Esq.

ATTORNEY VERIFICATION

I, Sameer Nath, an attorney admitted to practice in the courts of New York State, state that I am an associate with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
August 16, 2024



Junya Zeng, Esq.